

were vested in A. and his heirs upon trust for B. and his heirs, and B. died without an heir, the equitable interest in this case could neither escheat to the lord (*f*); nor, if the trust were created by conveyance from B., whose *seisin* or *title* was *ex parte paternâ*, could the lands, upon failure of heirs in that line, descend to the heir of B. *ex parte maternâ* (*g*): but the trustee, no person remaining to sue a *subpœna*, retained, as the legal proprietor, the beneficial enjoyment (*h*). [But now where the death occurs since the 14th August, 1884, the law of escheat applies in the same manner as if the interest had been a legal estate in corporeal hereditaments (*i*).]

* 19. *Onslow v. Wallis*. — If an estate be held by [*283] A. upon trust for B., and B. dies without leaving an heir, but having devised the estate to C. and D. upon trusts which fail or do not exhaust the beneficial interests, A. cannot insist on retaining the estate upon offering to satisfy the charges, if any, but will be bound to convey the estate to C. and D. as the nominees in the will and so entitled as against A., the bare trustee, and the Court as between those parties will not inquire into the nature of the trust or how far it can be executed (*a*).

20. *Purchaser dying without heir after payment of purchase-money, and before conveyance*. — In *Burgess v. Wheate*, Sir Thomas Clarke, M. R., put the case of a purchaser paying the consideration money, and then dying without an heir before the execution of the conveyance. Whether under such circumstances the vendor should keep both the estate and the money? The M. R. thought that the vendor would keep the estate, but that the purchaser's personal representative would have a lien upon it for the purchase-money (*b*).

(*f*) *Burgess v. Wheate*, 1 Eden, 177. But as to a surplus dividend in the hands of trustees for creditors, see *Wild v. Banning*, 12 Jur. N. S. 464.

(*g*) See 1 Eden, 186, 216, 256.

(*h*) *Taylor v. Haygarth*, 14 Sim. 8; *Davall v. New River Company*, 3 De G. & Sm. 394; *Cox v. Parker*, 22

Beav. 168; *Barrow v. Wadkin*, 24 Beav. 9; and see *Attorney-General v. Sands*, Hard. 496; *Cary*, 14; *Burgess v. Wheate*, 1 Eden, 212, 213, 253.

[(*i*) 47 & 48 Vict. c. 71, s. 4.]

(*a*) *Onslow v. Wallis*, 1 Mac. & G. 506; and see *Jones v. Goodchild*, 3 P. W. 33.

(*b*) 1 Eden, 211, *per* Sir T. Clarke.